

Exhibit 1

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IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH,
Plaintiff,

v.

TYLER JAMES ROBINSON,
Defendant.

**STATE'S NOTICE OF INTENT TO
CONDUCT NON-DESTRUCTIVE
TESTING**

Case No. 251403576

Judge Tony F. Graf, Jr.

The State hereby notifies Defendant of its intent to conduct forensic testing on a bullet jacket fragment and lead fragments.

One bullet jacket fragment and four lead fragments were recovered from the body of Charlie Kirk during his autopsy. The FBI lab intends to conduct forensic testing on the bullet jacket fragment and at least one of the lead fragments. While the testing will not destroy or consume the fragments, it may alter their character.

Bullet Jacket Fragment. The FBI lab intends to conduct Virtual Comparison Microscopy (VCM) analysis on the bullet jacket fragment to examine any markings

that the rifle imparted to the fragment. This analysis is non-destructive and employs 3D technology to capture multiple scans of the object.¹ The object is placed on a platform for scanning. The scanning instrument's optical head does not contact the item. The scan data will be preserved for future use, allowing any generated scan files to be produced for independent VCM examination and analysis.

The examiner has informed the State that to obtain a useful scan of the bullet jacket fragment, it may be necessary to fold back portions of the jacket fragment to allow the optical head to capture the surface of the jacket that contacted the rifle. Pliers or similar gripping tools may be used to fold back the jacket. While this process could leave marks on the surfaces of the fragment, the examiner will document those marks and, if possible, ensure that the marks do not interfere with the areas to be examined with VCM. Although this process may alter the shape of the jacket fragment, the examiner believes that the item should remain intact. The item is, nevertheless, fragile.

The Federal Bureau of Alcohol, Tobacco, Firearms, and Explosives (ATF) previously conducted Light Comparison Microscopy (LCM) analysis of the bullet jacket fragment. *See* September 17, 2025, ATF Lab Report at 2, “2025-W-000401(1) Firearms report_STAMPED.pdf” (disclosed on December 18, 2025, as Bates No. 011543). The ATF lab described the item as a “.30-caliber class deformed/damaged bullet jacket fragment.” *See id.* at 2. It is the State's understanding that the examiner

¹ The description included here represents the State's understanding of VCM. If an evidentiary hearing is necessary, experts will provide greater explanation.

who conducted this prior LCM analysis may have already folded back pieces of the bullet jacket fragment to expose its exterior surface.

After the ATF examined the bullet jacket fragment, it sent the fragment to the FBI lab. An examiner at the FBI lab noted that when the FBI lab received the bullet jacket fragment, it appeared that a small portion of the fragment was detached from the main portion. Given this, the FBI examiner stated that it is possible that additional pieces of the fragment may inadvertently become detached during the VCM analysis.

Lead fragments. The State also intends to conduct metallurgical testing on at least one of the recovered lead fragments. This testing involves taking a small scraping from the fragment. The examiner will document the area from which the scraping is taken. The examiner will not take a scraping from an area that would affect additional ballistics analysis through either VCM or LCM analysis.

The metallurgical testing will not prevent an independent expert from conducting the same analysis by taking a scraping from another area of the recovered bullet fragment(s).

Pursuant to the Court's November 4, 2025, order regarding evidence preservation, Defendant has fourteen days to object.

Dated December 22, 2025.

Utah County Attorney's Office
s/ Christopher D. Ballard
Christopher D. Ballard
Deputy Utah County Attorney

Counsel for Plaintiff

CERTIFICATE OF SERVICE

I certify that on December 22, 2025, I served via email a copy of the foregoing **STATE'S NOTICE OF INTENT TO CONDUCT NON-DESTRUCTIVE TESTING** on defense counsel as follows, and filed a Certificate of Service through the Court's electronic filing system.

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